

AI and Nigeria: Exploring Threats to Human Rights

By Favour Borokini, Data and Digital Rights Researcher, Pollicy

This module looks at the implications of artificial intelligence technologies on human rights in Nigeria. The lecture begins with an explanation of AI and human rights before moving into specific use cases of AI technology in Nigeria and the effects that they have had on society. The course summarizes key considerations that must be taken into account to develop equitable and just AI systems, and concludes with an important note on inclusion in the AI ecosystem.

Lecture Transcript

0:01 Hello, my name is Favour Borokini. And I currently work as a data and digital rights researcher with Pollicy, a Ugandan civic technology organization. In my role at Pollicy, I've contributed to a number of reports and policy outputs and publications exploring the impact of technology on social justice issues, service delivery and equality, especially as it impacts the rights of women in Africa. I'm particularly interested in artificial intelligence, because of how revolutionary it is, and the significance of the threats it poses to so many issues that are extremely prevalent today in Africa. So, today, I will be speaking on a topic that I have tied to AI and Nigeria – developing threats to human rights. In the course of this module, I will try to give a brief exploration of the human rights landscape in Nigeria exploring some of the regulatory frameworks and some of the significant policy threats that AI could pose, while exploring as well some of the more significant and relevant human rights revolutions and crises that we have seen in Nigeria in the last decade, from the 90s for instance, based on their significance.

2:03 So, to begin with, what is AI? AI is the theory and development of computer systems able to perform tasks normally requiring human intelligence. So, what this means is that of course, we are talking about AI, we are referring to a whole lot of things. The definitions are definitely disputed, but when we look at certain branches of AI, such as computer vision, natural language processing, even certain aspects of developments, you know, through which computers is able to perform tasks that that we ordinarily, you know, prior to now, considered the sole purview of humanity such as computer aided design. Actually the whole theory behind AI is the ability for computers or machines to perform tasks that normally would require human intelligence.

3:23 And then, what are human rights? So human rights are basic rights and freedoms which belong to every human being. They are rights that we possess and own purely because we are human, not because we are rich, or poor, or belong to a certain community, or a certain country or come from certain regions, or believe or practice certain religions, but simply because we are human. Once a person is born, these rights ideas are theirs to own and exercise. So, key features of human rights. Human rights are universal. Your rights to freedom of expression, freedom of movement, freedom to your, right to dignity, for instance. Personal liberty is not limited to a particular geographic location. And it does not cease to exist purely because you leave your native land and migrate somewhere else. And they're indivisible. It's not possible to sachetize it as we see here, Nigeria, someone cannot

AI ETHICS

give you 'human rights lite' for instance, and expect you to be satisfied with just a modified version. Yeah, inalienable - no ruler, no law, this to certain certain exceptions, can prevent you from exercising. If you're human rights, because you are human, and your humanity gives you the right to enjoy these rights. And then choice, of course, every human being has the choice to express his or human rights. If I choose to not move, it is also a part of my rights to movements; if I choose to restrain myself, it is also an expression of my right to restraint from communicating or from doing something that I am entitled to do. And human rights, tied up in the whole idea of human rights is definitely dignity. It is undignified for human beings to be treated in certain ways, to be stripped of their human rights, it's undignifying. And it just makes sense that if you're a human being, and you have these human rights, stripping you of the ability to exercise them, strips you of your human dignity. Torture, for instance, is a violation of the human right to dignity. And then we have equality and equity.

6:27 These are two closely related, albeit separate concepts. But the entire idea, of course, is that everybody is considered equal on that alone. One person is not more equal than others, to borrow the phrase from George Orwell's *Animal Farm*, that some animals are more equal than others. No animals are more equal than others, at least this, this is, this is an 'ought to' phrase. We know that in practice, in real life, it's a different reality. But equality means that each and every one of us have the right to express our human right to equality equally. And equity means that where there are systemic or systematic hindrances to the exploration and enjoyment of these human rights systems should be put in place as necessary, as needed to ensure that human beings are capable of enjoying them.

7:38 And a very good example of this would be affirmative action, for instance, through which minority groups, groups that have been minoritized as well, are able to enjoy general rights which majority groups are more better positioned to enjoy. Human rights in Nigeria are guaranteed under the Constitution of the Federal Republic of Nigeria 1999, as amended. And the constitution which is granddam provides: the right to life, right to dignity, right to personal liberty, right to fair hearing, privacy, freedom of thought, conscience and religion, freedom of expression, opinion, freedom to receive and impart information and ideas without interference, right to association to form a trade unions any political party, freedom of movement, the right to not be discriminated against based on your tribe, your community, your religion, your political opinion, the right to acquire and own immovable property and moving property anywhere in Nigeria.

8:56 So these are all rights that as a human being, you are guaranteed on that the Nigerian Constitution. So exploring the impact of AI on human rights generally. There are certain concepts that are important to note. And the first of those is data and bias. I grouped these two together because it's sort of impossible to explain the problem with data without its significance and importance or relevance of data to AI and human rights without also mentioning bias. So in my word cloud here, I have a couple of words: historical, injustices, variety, volume, velocity, representation, data governance, labeling, sources. And these are just terms that give us an inkling of what we should be thinking about when we are talking about data and bias. So, just as there is no such thing, as you know, human beings can't be perfectly neutral, there is nobody who is not affected by certain biases, one bias or the other. So, as data reflects historical information that has been collected about each and every one of us, it therefore reflects biases. And, you know, access to the curating of this data, for instance, access to its collection, its labeling, its cleaning, and the ability to determine what type of data and from what groups of people already predisposes data beyond the fact that it's ordinarily by us, so even more biased. So, there are several entry points through which bias can be introduced into data sets. And talked about variety, velocity or volume problem today,

AI ETHICS

of course, with data - the availability of it - which many people refer to, as I've heard a lot of people say that data is the new oil, the new sunlights, the new oxygen, there are so many synonyms, so many, what do you quantities and elements to which data has been compared.

11:51 And the difference of course between, and I think that this is because of how, you know, the volume, and the velocity and variety of data available today, we are more equipped than ever before to collect data about any group of people, any single person, any single society. And we are therefore better able to power, you know, the creation of AI powered products and services due to the availability of data today. Even in so-called data poor environments such as Nigeria and a number of other African countries.

12:41 So when we're talking about sources, as I mentioned earlier, talking about from what communities for instance, data is being sourced or collected, how do we approach for instance, if there are indigenous groups, vulnerable groups, minority groups, how they were approached was a lot of data collection is very extractivist. So the manner and the way in which data is collected from these communities, whether with their consent, or whether it was with informed consent, for instance, also impacts human rights. And then the labeling. Of course, if data sets are improperly built, then as we will see, the results might be rather unsavory and not what the designers, engineers, or whoever even the users planned for it to be. And then representation, of course, it's a well known fact that there's very poor representation of women, for instance, in AI fields globally, and even in Africa.

14:10 So the sort of information or the sort of bias, the sort of thing that you ought to look out for that will make sense because you're from a certain group who has experienced some sort of discrimination, or who has some sort of experience with certain issues is not what will naturally occur with somebody who doesn't share your experience. And so representation and diversity is extremely important. And then historical injustices. What's the history of the world is a history of injustice and unjust situations to people. So, of course, data reflects this. And if we were to go simply by the data, we would find that we would be replicating historical injustices, because we are not leading, rather we are being led by a machine. And data governance is important, of course, because we need to think about how the whole ideation, collection process and storage of data is being done under what environmental regulatory frameworks, who has access. A number of African countries today are extremely interested in data governance, in regulating the use of data, collection of data by private companies, because they want access to data to be able to support their service delivery, for instance. And this data has been siloed by private companies who have a profit making motivation, and interest. So these are some of the issues related to data governance.

16:05 And then, so this is a case study that is related to labeling and this is from a couple of years ago, where Google apologized because its search for a picture of a black person was labeled, tagged 'gorilla'. Probably due to whatever tagging system who had put in place at the time. I think something recently happened as well with Facebook just last year. And it was very interesting reading comments that tried to minimize the issue. A lot of people said that human beings are primates. And, of course, these statements, it just implies an attempt at overlooking, and on, you know, an attempt to minimize the racist history of the world and the reality of racist aggression or racism towards people of African descent all over the world today. So, if somebody who is not white, is called a monkey or a gorilla, there is such a charged historical racist, discriminatory history behind the use of that word or that description the way there is, to black people who were carted off into the West as a slaves.

AI ETHICS

18:03 And then other than that, we need to look at as well is the concept of neutrality - is technology neutral? The moral authority of bots in the court system, for instance? So whenever we think about neutrality, I believe it's a very common belief amongst many people today that technology is neutral, that it's basically what you put in that it puts out that well, it cannot be influenced, technological systems cannot be bribed. What we know really, that technological systems are influenced by the value systems of those who create them. And beyond that, AI systems particularly cannot be said to be neutral, because they do not have the ability to learn and as such, they are inherently biased, because just as it is with a person, another human being, who only is aware of what you have done in the past and has no concept or idea of your potential for the future, such a person would be tagged and rightly so, you know, a bigot or a short sighted person. So, and this is important if you are thinking about the use of bots and automated systems in the judiciary system.

19:53 And we need to think about what moral authority bots have. Can bots be retrained or put through school to understand what ethics are, what discrimination is? Can they then be able to make independent decisions of its own or learn new information independently? I do not believe this is a thing that can happen yet. And yes, the idea that technology is neutral is extremely pervasive.

20:26 And as we can see in the US where the COMPAS Recidivism Algorithm was found to predict that white defendants were less risky than they really were, and that black defendants had a higher risk for recommitting offenses, that is just a replication of historical biases against a certain community or a certain group of people. And we also have the fact that AI systems are black boxes. And that, of course, leads to transparency and opacity. We do not really understand how these systems work, we can make some guesses as to why or how they have made certain decisions. But a lot of these processes remain black boxes, in black boxes. And then comes the accountability. We need to think about who takes the blame, a lot of a huge part of our judiciary has judicial system is built on the concept of accountability. We have civil and criminal trials, because we want the judge to announce that the defendant or the plaintiff or whoever is responsible as accountable for, is guilty of an act and should pay a certain fine or should go to prison for a certain period of time.

22:06 But when it comes to automated decision systems, especially those that we are expected to believe make independent neutral decisions, it then creates a kind of dilemma. Who should be responsible for some of the mistakes that these systems make? Should it be the manufacturer? Should it be whatever customer or clients has deployed them? Should it be the agent of the customer or the clients who has deployed them as in a classroom setting? Should it be the engineer at the company who designed the system? And then explainability of course wants to be able to know exactly how some of these systems have arrived at whatever decisions they have arrived at. In low resource areas, for instance, or in certain high priority topics or areas, it's important for people to know why for instance, they have been fired or why they have been denied an admission based on if a human being is making such a decision, we talk less of what a machine is doing so, what how how this machine so, so called artificial intelligence agents or systems be able to explain and satisfactorily solve.

23:44 And then an example of the impact of AI on human rights or equality. In the UK, when the government decided to use algorithms to grade students, it led to a lot of protests because, as was mentioned, the number of historical biases involved with these decisions. So reports showed that students from historically marginalized or less affluent neighborhoods were ranked lower than those from more well-to-do schools and neighborhoods,

AI ETHICS

regardless of their personal ability and effort. And the thing about personal ability and efforts is that human beings are dynamic, we change, you have the ability to change our minds. We have the ability to make decisions and change our mind just in the nick of time just before carrying out those decisions. We are remarkably resilient. We're not static. And so even if a particular child, a particular student had a history of failure, there is no guarantee there's nothing to say that in her final exams, in her A-Levels, that she would not have put even more effort than before, and then pass. But these systems, like I said, are unable to change their minds and are unable to learn new information, and therefore have to rely only on past historical data.

25:40 So some ramifications of AI and human rights systems, of course, we have visa systems such as those deployed in the UK and in Canada, which have been used to, deployed to, make these applications extremely difficult for people from Africa. And it's a particular breach, but a large threat to your freedom of movement, for instance. It's also a breach I think, we could say, of the right to dignity, because it is undignified that Africans, our visa applications to visit countries are not being analyzed and assessed by human beings, but rather by machines, who according to certain reports are not even being properly supervised. And in the Canadian system, as I mentioned, there are reports that certain African countries of the "Dirty 30" have had a higher number of student visa rejections due to Canada's AI visa processing algorithm.

27:09 And coming to Nigeria. These are some slides about what Nigeria is. Freedom House, for instance, ranks Nigeria as 'partly free' with a score of 43 out of 100 down from the previous year's score 45 out of 100. Nigeria was previously categorized as the 'poverty capital to watch' for this year. The World Poverty Clock has revealed that Nigeria is no longer the poverty capital of the world, but still has the highest number of people living in extreme poverty in Africa. And Nigeria is a multicultural, multiethnic, multi-religious society with over 250 ethnic groups and there are three major ethnic groups: the Yoruba, the Igbo and the Hausa-Fulani. We currently practice a presidential democracy after decades of military rule between 1966 to 1999, with a brief interregnum, from 1979 to 1983. The median age of Nigeria's population is 18. So there's some Nigeria.

28:50 So we're talking about identifying AI-enabled human rights threats to Nigeria. The government AI Readiness Index of 2021 has Nigeria around as 113th globally, and 11th in Sub Saharan Africa. So why this low ranking reviews a challenge related to Nigeria's development needs. It also means that there is an opportunity to identify some of the issues and develop a framework to address them. So it's sort of a blessing in this case, you could say that gives us an opportunity to frame some of the discussions regarding the developments, deployment and integration of AI in Nigeria. So how do we begin to identify some of these issues? And I believe that to identify some of the issues when you think about what the important, significant policy trends are in Nigeria. And I believe that by identifying causes of crises, inequality, and injustice in Nigeria, we have some insight into exactly what factors we need to bear in mind while deploying AI systems and what some of the trigger points will be. So this is a choice, not meant to be comprehensive by any means. I will give our shape to a particular case study which I think will be significant to this module.

30:44 And perhaps in future there will be more opportunities to discuss some other case studies. And talking about beneficial, responsible, trustworthy and ethical AI frameworks. These are processes, frameworks, that have been born out of several discussions, mostly from the West, regarding how AI should be developed and used. And these frameworks and terms give us the opportunity to challenge threats and ensure the benefits of the technology

AI ETHICS

are equitably distributed from the margins to the center by identifying the most vulnerable groups amongst us and building for them.

31:37 This is important that is it is important to identify specific needs and historical events and current realities to avoid taking positions and technology chauvinism, the idea that technology can fix everything, which is of course, related to the fact that to the prevalent idea that technology is neutral, that it does not foment or propagate injustice.

32:09 So some work that has been done by activists, researchers, people, prominent speakers in the tech policy space in Africa. Looking at artificial intelligence of course, My Data Rights Project by Chenai Chair, which explores how AI and data can be used and is being used, and how we can create better ethical future uses of these technologies. And I encourage everyone to go to visit My Data Rights Africa to learn more about Chenai's work. So some of the work that she explores, of course, is the opportunities and challenges for marginalized groups with AI control, and how social justice can be ensured for marginalized communities.

33:17 Now, as I mentioned, it's important to have an awareness of what some of the noteworthy policies on human rights issues are. So some of these include the Civil War, the Nigerian Civil War, which was basically a pogrom against the members of the Igbo ethnic group, which you remember I mentioned constitutes one of the three major ethnic groups in Nigeria. Also the Twitter Ban from last year, in response, which was basically a response by the Nigerian government to the suspension of our current president, President Muhammadu Buhari's accounts, due to the insight for harmful rhetoric, which was actually interestingly related to the Civil War, which basically, could be said to have stoked up on ethnic conflicts, and it was a very fraught tweet. It said something basically akin to that we will show them what we showed them during the Civil War, basically. And also violence against women, which reached a terrible height during the lockdown. And ethnic and religious violence in various parts of northern Nigeria and central Nigeria.

35:00 Police brutality against EndSARS protests of 2020. Extreme poverty, as we mentioned Nigeria has the highest number of people living in extreme poverty in Africa and was once the poverty capital of the world. And federal character. Federal character is an interesting concept in Nigeria, which basically means that every single appointment, admissions into federal universities must reflect federal character, that is it must have representation of individuals from Nigeria's multicultural feature. That is, if you're admitting students into your school, you must admit people from every corner of the country. So that's what federal character is about basically. If there is time, and an opportunity, I really think that federal character as one of the most significant policy issues in Nigeria are worth exploring, especially with the you know, the deployment of AI in employment, for instance, use cases.

36:30 So some of the threads which we can begin to think about flowing from the noteworthy policies that we talked about include: how AI will impact gender-based violence; how will the use of AI in governance (policing, surveillance, housing, education) - how it affects human rights; how will, for instance, extremism (religious extremism, banditry, secessionist movements, or all crisis that are occurring all over the country) spurred by the adoption of certain artificial intelligence systems in the country and how these systems affect human rights.

37:23 How will the use of AI? Okay, I just said that. So how will synthetic media impact democracy and rules of evidence? Synthetic media depicts a particular interest of mine. And something that we need to think about is how

AI ETHICS

our evidence acts, the Evidence Act of Nigeria, how equipped is it to handle the existence of deep fakes? And what are the threats to video evidence as a form of evidence that is admissible? How that's been impacted by the existence of synthetic media? And also think about the liars dividend, because liars dividend basically refers to the idea that just the fact that video and audio and images can be fixed extremely realistically, anyone basically who is a liar can rely on the existence of these technologies to say that evidence was fixed. And we saw that during the EndSARS protests from 2020 that while there was a lackey shooting by the Nigerian army, which was aired on Instagram Live by witnesses, the Nigerian government denied that any such incidents are taking place. And they targeted Instagram Live as faked. They said it was a faked video, that no such thing had happened. And I remember as well in 2019, when the house of a prominent politician in Nigeria was invaded by policemen, with video showing evidence of his fence being scaled, a certain representative of the Nigerian Army also declared that evidence to be fake.

39:48 And, of course, the fake pornography. An issue that's almost in its entirety, disproportionately affects women is also another issue already we grapple women on social media and NGOs grapple with various forms of online abuse, such that it is extremely terrifying to consider what the ramifications of deep fake pornography might be on women using the internet today.

40:20 And then we also need to think about discrimination and exclusion being fomented by the use of AI, especially in, for instance, infamously FinTech apps are, Lent X in particular, apps that provide lending services. So these apps have been, have stepped into a gap that exists due to the inability of traditional banking institutions to grant loans to undocumented customers or so called thin file customers. So, using mobile technology, fintechs simply bring the bank to the user, per se. And what they do is that once you download an app, all kinds of permissions are requested from you. And then, this includes your browser history, access to your gallery, access to your SMS, access to almost just about every single app on your phone. And then this data is collected to analyze how trustworthy you are or you know, what's exactly why you qualify for a loan. Some of the information that these apps have claimed to be able to collect and analyze include selfies, for instance. And so a person's rights to financial inclusion, particularly to be direct, could be judged based on the amount of selfies they take, the amount of videos they take of themselves, what websites they visit, for instance, how often they use social media. And, and it's such a weird dynamic, that these apps, apart from the fact that they breach privacy, rights of privacy, and human rights privacy and you know and dignity, they also introduce discrimination and exclusion for any clients that they deem non creditworthy, not creditworthy.

43:13 And so as we draw to the end of this module, I'd like to make a case study of police brutality in Nigeria, as a way through which we can think about how AI should be deployed by policing systems or in surveillance or in security in Nigeria. Now as you know, a lot of conversations regarding AI ethics have been from the West, and particularly the United States, and police brutality in the United States, especially to persons of, to black people in the United States is it has a heavy racial history, the issue of racism and discrimination.

44:12 Now, bringing this example to Nigeria, another country where police brutality is just as prominent, I find that there's a slight difference between what exactly are the factors or commonalities in police brutality. So while in the US, you could say that police brutality was carried out by white male police officers to members of the black community. In Nigeria it's more an issue predicated on age and classism (age and class). So you could say that police officers who are usually older men and women, although women less so, who are also poorly

AI ETHICS

compensated often take out society, so biased stereotypes, about young Nigerians. And because of this view, young people who don't conform to conventional, conservative Nigerian ideas of a proper young person. And then use this as excuses to mete out aggression. So a young person who drives an expensive car or who uses expensive mobile devices are tagged cyber criminals, and they are often harassed and targeted by these police officers. And so, you see that the distinction between race and sex or gender compared with the reality of age and classism means that we need to think about exactly what the triggers are for the use of AI by the police in Nigeria.

46:25 So, beyond age and classism, we also think about the use of brutality by members of other armed forces against certain minority groups. And even at times, members of majority ethnic groups such as the Igbo's worries that you would find that a lot of these encounters are simply replicating historical biases that have existed because of ethnic stereotypes about certain groups. And are basically rehashing, when it comes to the case of violence against people of certain ethnicities, incidents from the Nigerian Civil War, for instance. So, what this therefore means is that we need to think about the people who are most likely to be affected in, in Nigeria. This would be young people who may be rich or may not be rich, but who, by virtue of their presentation, do not conform to the Nigerian idea of who or what a responsible young person should be. And identifying how this also affects vulnerable groups such as women, for instance, is also important, because conservative ideas regarding how women are expected to look and behave means that women could potentially be targets of police harassment by not conforming. And then members of sexual and gender minority groups who also choose to live their lives authentically and present the way they do are also easy targets of police brutality in Nigeria.

49:01 So the installation of surveillance systems for instance in Nigeria, AI powered facial recognition and other systems which are used to surveil people would mean that several axes of oppression are able to come into contact and are put into play and are then exploited by people with power, authority and influence, which in this case, would be members of the armed forces, such as the army and the Nigerian police. And so we see that police brutality is a noteworthy policy and human rights issue worth examining.

50:10 Another important example of a deployment of AI that's failed within a couple of months of its deployments in Nigeria is the Vehicle Identification Number Automated Valuation system, which was deployed by the customs authority in Nigeria. So through this system, customs authorities believed that they would be able to bring some sanity into the system, that the valuation of vehicles would be free of corruption. But what actually happened was that the opposite happened, the opposite occurred. And the agents and dealers involved in importing cars claimed that the Automated Valuation system produced error reading figures, because the wrong numbers had been the system, essentially had trained with the wrong figures, and because essentially typed garbage in garbage out. So what are due to a history of bribery and corruption or forging of certain documents, what happened was that the cars that were being imported and being brought in were being evaluated at a value much higher than ordinary, than was to be expected. And so, there was a huge row, and now the custom system has suspended the use of the evaluation system. Excuse me. So, what happened here, it just essentially was that there was a belief that the use of automation would bring neutrality into a system, but it is impossible for there to be fairness or for there to be justice in a system that you know, when created through a system that has been trained on false incorrect data.

52:40 And there are a number of other case studies of the usage of artificial intelligence that, of course, are unknown to the public. There are many procurement systems. Public procurement, for instance, is a very opaque

AI ETHICS

system in which the public isn't privy to necessarily. So, of course, there are only very limited examples that can be cited about the use of AI in Nigeria today. But what this means is that we have an opportunity, a real opportunity, to analyze also what these threats could be, and what the harms to human rights in Nigeria could be, what are the harms to minority vulnerable groups could be, especially if these systems are being deployed by majority groups, by powerful groups, and we're looking at along the axis of religion, ethnicity, age, sex, and many others that are also worth exploring.

54:03 So as I round off. On a final note, I'd like to say that developing or using, creating a system through which artificial intelligence products or services are integrated for public use, for public benefits, which do not harm people would let us really mean that the needs, the historical harms and injustices that have been done to certain minority groups needs to be addressed first, needs to be brought into fore. And AI systems need to be deployed to resolve these issues. And what this will do is that it'll bring those at the edge of the margin into the center and increase equitable results that would allow us to build artificial intelligence systems that do not unfairly exclude, not that there is a particularly fair way to exclude, but which do not favor or benefit or harm other groups, disproportionately than others. Thank you.